

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF SLASTENIN AND OTHERS v. RUSSIA

(Applications nos. 70345/17 and 28 others –
see appended list)

JUDGMENT

STRASBOURG

13 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Slastenin and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and the Protocols thereto, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of

Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in administrative-offence proceedings under the CAO; *Martynyuk v. Russia*, no. 13764/15, §§ 21-28 and 37-43, 8 October 2019, related to the lack of a suspensive effect on an appeal against the sentence of detention; *Schatschaschwili v. Germany* [GC], no. 9154/10, § 100 et seq., ECHR 2015; *Murtazaliyeva v. Russia* [GC], no. 36658/05, § 139 et seq., 18 December 2018; *Butkevich*, §§ 94-103, and *Martynyuk*, §§ 21-28, both cited above, related to impossibility to question witnesses in a criminal trial (in relation to application no. 14672/20 as indicated in the appended table).

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention.

14. Lastly, some applicants also raised other complaints under various Articles of the Convention.

15. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention, and *declares* the remainder of the applications inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	70345/17 07/09/2017	**Nikita Alekseyevich SLASTENIN** 1996	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO and article 20.2 § 5 of CAO	10 days of detention and fine of RUB 10,000	St Petersburg City Court 16/06/2017	Art. 5 (1) - unlawful detention – on 12-13/06/2017 the applicant was kept in a police station after the offence reports had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started to serve the sentence of detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings did not offer suspensive effect	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	84272/17 14/12/2017	**Vasiliy Vladimirovich DROBYSHEV** 1977	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	5 days of detention fine of RUB 10,000	St Petersburg City Court 16/06/2017 St Petersburg City Court 06/07/2017	Art. 5 (1) - unlawful detention – on 12-13/06/2017 escorting to and detention in a police station for and after compiling the offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started to serve the sentence of detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings did not offer suspensive effect	5,000
3.	84276/17 14/12/2017	**Sergey Ivanovich VASILYEV** 1985	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 04/07/2017	Art. 5 (1) - unlawful detention – on 12-14/06/2017 escorting to and detention in a police station for and after compiling the offence reports, Art. 6 (1) - lack of impartiality of the tribunal in	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					article 19.3 § 1 of CAO	5 days of detention	St Petersburg City Court 19/06/2017	view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started to serve the sentence of detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings did not offer suspensive effect	
4.	3647/18 13/12/2017	**Nikita Yuryevich VISSARIONOV** 1995	Ratnikova Svetlana Sergeyevna St Petersburg	Anticorruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO	12 days of detention	St Petersburg City Court 20/06/2017	Art. 5 (1) - unlawful detention – on 12-13/06/2017 escorting to and detention in a police station for and after compiling the offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
5.	3676/18 08/01/2018	**Yekaterina Sergeyevna POZDNYAKOVA** 1995	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 11/07/2017	Art. 5 (1) - unlawful detention - escorting to and detention in a police station on 12-13/06/2017 for and	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				12/06/2017				after compiling the offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
6.	24336/18 08/05/2018	**Andrey Vadimovich SHKILNYUK** 1998	Yatsenko Irina Aleksandrovna Moscow	Protest rally Moscow 05/11/2017	article 19.3 § 1 of CAO	15 days of detention	Moscow City Court 08/11/2017		5,000
7.	24344/18 10/05/2018	**Yevgeniy Georgiyevich LIN** 1988	Yatsenko Irina Aleksandrovna Moscow	Protest rally Moscow 05/11/2017	article 19.3 § 1 of CAO	10 days of detention	Moscow City Court 10/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
8.	24661/18 29/04/2018	**Nikolay Petrovich MIRONOV** 1971	Memorial Human Rights Centre Moscow	Protest against political persecution Tula 29/10/2017	article 20.2 § 2 of CAO	8 days of detention	Tula Regional Court 03/11/2017	Art. 5 (1) - unlawful detention - escorting to a police station on 29/10/2017 for the sole purpose of compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								administrative-offence proceedings	
9.	36109/18 26/07/2018	**Dmitriy Sergeyevich MERZLYAKOV** 1983	Mikhaylova Varvara Dmitriyevna St Petersburg	Anticorruption rally Moscow 12/06/2017 Rally against the pension reform St Petersburg 09/09/2018	article 20.2 § 5 of CAO article 20.2 § 6.1 of CAO	fine of RUB 15,000 5 days of detention	Moscow City Court 30/01/2018 St Petersburg City Court 11/10/2018	Art. 5 (1) - unlawful detention - on 9-10/09/2018 the applicant remained detained after the offence reports had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of the proceedings	5,000
10.	37029/18 06/07/2018	**Dmitriy Vitalyevich PESHKOV** 1995		Rally to support A. Navalnyy's candidacy for President, Novosibirsk 07/10/2017 Rally to support A. Navalniy and L. Volkov,	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 5,000 fine of RUB 5,000	Novosibirsk Regional Court 16/01/2018 Novosibirsk Regional Court 16/01/2018		5,000

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				Novosibirsk 30/09/2017 Rally against the pension reform, Novosibirsk 09/09/2018	article 20.2 § 8 of CAO	15 days of detention	Novosibirsk Regional Court 20/09/2018		
11.	42836/18 21/08/2018	**Ilya Sergeyevich BOLOBAN** 1989	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Photo shooting session with banners Inta 14/10/2017	article 20.2 § 2 of CAO	5 days of detention	Supreme Court of Komi Republic 21/02/2018	Art. 5 (1) - unlawful detention - escorting to a police station on 14/10/2017 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
12.	50126/18 10/10/2018	**Sergey Anatolyevich ZHOLOBOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally against Putin's re-election Voronezh	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 05/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	5,000

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				05/05/2018	article 19.3 § 1 of CAO	5 days of detention	Voronezh Regional Court 21/06/2018		
13.	56357/18 21/11/2018	**Aleksandr Vyacheslavovich SHIPANOV** 1981	Zhulimov Igor Anatolyevich Penza	Rally relating to the presidential election Penza 05/05/2018 Rally against the pension reform Penza 09/09/2018	article 19.3 § 1 of CAO article 20.2 § 6.1 of CAO	5 days of detention fine of RUB 12,000	Penza Regional Court 22/05/2018 Penza Regional Court 14/02/2019	Art. 5 (1) - unlawful detention – on 14-15/09/2018 escorting to and detention in a police station for and after compiling the offence report concerning the rally on 09/09/2018	5,000
14.	59767/18 06/12/2018	**Lyudmila Viktorovna GRABKO** 1975	Yatsenko Irina Aleksandrovna Moscow	Rally of mortgage loaners Moscow 28/11/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/06/2018	Art. 5 (1) - unlawful detention - escorting to a police station on 28/11/2017 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	3838/19 29/12/2018	**Stanislav Mikhaylovich CHEPACHENKO** 1986	Popkov Aleksandr Vasilyevich Sochi	Anticorruption rally Krasnodar 05/05/2018	article 19.3 § 1 of CAO	1 day of detention	Krasnodar Regional Court 03/07/2018		4,000
16.	4433/19 10/01/2019	**Ivan Igorevich KUTUZOV** 1987	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Vladimir 05/05/2018	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 5,000 1 day of detention	Vladimir Regional Court 02/10/2018 Vladimir Regional Court 12/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	12474/19 25/02/2019	**Dmitriy Viktorovich OGORODNIKOV** 1985	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform St Petersburg 09/09/2018	article 20.2 § 6.1 of CAO	7 days of detention	St Petersburg City Court 11/10/2018	Art. 5 (1) - unlawful detention – on 09-11/09/2018 the applicant remained detained after the offence report had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
18.	18145/19 21/03/2019	**Sergey Nikolayevich KOLESNIKOV** 1993	Yesipova Alina Vladimirovna St Petersburg	Rally against the pension reform	article 20.2 § 6.1 of CAO	9 days of detention	St Petersburg City Court 24/09/2018	Art. 5 (1) - unlawful detention - on 09-11/09/2018 the applicant was kept in	5,000

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				St Petersburg 09/09/2018				detention after the offence report had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
19.	57173/19 16/10/2019	**Bagaudin Mussayevich GAGIYEV** 1961	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Nazran 27/03/2019	article 20.2 § 6.1 of CAO	10 days of detention	Supreme Court of the Ingushetia Republic 16/04/2019	Art. 5 (1) - unlawful detention – escorting to and detention in a police station on 11/04/2019 for compiling an offence report in relation to the rally on 27/03/2019, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	EUR 5,000
20.	60672/19 15/11/2019	**Albert Magometovich BALAKHOYEV** 1992	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Supreme Court of the Ingushetia Republic 29/05/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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21.	62170/19 22/11/2019	**Magomed-Bashir Yusupovich KATSIYEV** 1964	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 5 of CAO	fine of RUB 20,000	Supreme Court of the Ingushetia Republic 22/05/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
22.	63395/19 28/11/2019	**Magomed Akhmetovich NAKOSTKHOYEV** 1972	Sabinin Andrey Vasilyevich Stavropol	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of the Ingushetia Republic 20/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
23.	1661/20 13/12/2019	**Murat Zelimkhanovich BEKOV** 1947	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Ingushetia Republic 13/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
24.	4314/20 26/12/2019	**Savarbek Musayevich UZHAKHOV** 1953	Memorial Human Rights Centre Moscow	Rally concerning the regional	article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of the Ingushetia Republic		3,500

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				statute on referenda Magas 27/03/2019			03/07/2019		
25.	4320/20 26/12/2019	**Askhap Abdurakhmanovich GOYGOV** 1956	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Nazran 27/03/2019	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Supreme Court of the Ingushetia Republic 27/06/2019		3,500
26.	4334/20 26/12/2019	**Rezvan Kureyshovich OZDOYEV** 1991	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Ingushetia Republic 11/07/2019		3,500
27.	6839/20 29/01/2020	**Svyatoslav Sergeyevich DRUZHININ** 2000	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow 27/07/2019	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 01/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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28.	8660/20 22/01/2020	**Ibragim Kureyshovich DUGIYEV** 1994	Memorial Human Rights Centre Moscow	Rally concerning the regional statute on referenda Magas 27/03/2019	article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of the Ingushetia Republic 24/07/2019		3,500
29.	14672/20 09/03/2020	**Ilya Anatolyevich NIKOLAYEV** 1992	Eysmont Mariya Olegovna Moscow	Rally for fair elections to Mosgorduma Moscow 27/07/2019	article 19.3 § 1 of CAO	4 days of detention	Moscow City Court 10/09/2019	Art. 5 (1) - unlawful detention - on 27-29/07/2019 the applicant remained in detention after the offence report had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 6 (1) - and Art. 6 (3) (d) – unfair trial in view of restrictions on the right to examine witnesses - inability to cross-examine in open court witnesses, including police officers on whose written statements the	5,000

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								applicant's conviction was based	

[1] Plus any tax that may be chargeable to the applicants.